SYNOPSIS AND LIST OF DATES

The petitioners respectively are an A.N.M. (Auxillary Nurse Midwife) and Staff Nurse. The 2nd petitioner presently is an Incharge Matron at the Government General Hospital, Mulbagal in Kolar District of Karnataka State, while the 1st petitioner has been serving as A.N.M. at the Primary Health Centre, Kyasamballi Village in Bangarpet Taluk of the same District. They were respectively a A.N.M. and Staff Nurse serving at the Government Hospital in Mulbagal Town of Kolar District, in the month of April 1992. A certain Smt. Jayamma (since deceased) of Dommasandra Village in Mallanayakanahalli of Mulbagal Taluk of Kolar District appears to have made a statement before a Medical Officer at Kolar on 5.5.1992 that she had married 7 years before the said date; that she lived with her husband Srinivasachari for 5 years after her marriage; that for two years preceding the said date she had been living with her parents that while staying with her parents her husband Srinivasachari used to intermittently visit her from whom she had become pregnant; that she was not willing to conceive but since had conceived and was pregnant by three months as on the said date she approached the petitioners in the night of 29.4.1992 alongwith a certain Thippakka of the said village and that the petitioners had carried out a miscarriage; that she went back to her village the next day; that on 2.5.1992 she felt heaviness in her abdomen and that when she statedly approached the

Government Medical Officer the petitioners statedly threatened the said Jayamma in the morning of 3.5.1992 of dire consequences and that her mother admitted her on 7.5.1992 to a Government Hospital and that therefore for having statedly carried out miscarriage the petitioners be proceeded against. Such a statement having been statedly recorded on 5.5.1992, a F.I.R. was lodged before the learned Judicial Magistrate, I Class, Mulbagal Town, Kolar District, in Crime No.147/1992 of 8.5.1992 for offences punishable under Sections 312 and 506 of the Indian Penal Code 1790.

The said information was thereupon laid before the learned Principal Sessions Judge, Kolar in S.C. No.16/1996 on his file. He had charged the petitioners of offences punishable under Sections 304 II and 314 of the Indian Penal Code as against the offences punishable under Sections 312 and 506 alleged in the F.I.R. On 3.3.2003 the petitioners had been convicted for offences punishable under Sections 314 and 304 II of the Indian Penal Code, that the petitioner shall undergo in Criminal Appeal No.548/2003 that the petitioners had filed in the Hon'ble High Court of Karnataka the said conviction stood setaside on 11.7.2005 remitting the proceedings back to the Sessions Court with a direction to the petitioners to appear before the Court on 1.9.2005.

Upon their appearance in pursuance of the said direction of the Hon'ble High Court, the petitioners were again charged

on 6.1.2006 for offences punishable under Sections 304, 314 read with Section 34 of the Indian Penal Code.

The petitioners questioned the same in Criminal Revision Petition No. 253/2006 before the Hon'ble High Court which allowed the said petition by its considered order dated 19.4.2006 holding that from the material on record the Hon'ble Court was of the prima-facie view that the allegations would fall only within the purview of Section 314 of the IPC.

Consequently the petitioners were again charged for an offence punishable under Section 314 read with Section 34 of the Indian Penal Code. The petitioners pleaded their innocence and desired to be tried. Based on the material already collected and no doubt extending the required opportunity of cross-examining the witnesses but not recording any fresh evidence after charges were framed only under Section 314 read with Section 34 the petitioners were again convicted by an order dated 30.3.2007 and sentenced to undergo simple imprisonment for a period of one year and to pay a fine of Rs.25,000/- each in default of which to undergo a further simple imprisonment for a period of three months and that the fine amount to be deposited in the name of the son of the said Jayamma since deceased.

While the miscarriage is alleged to have taken place at Mulbagal on 29.4.1992 and her discharge on 30.4.1992 and her admission to the Government Hospital, Kolar was statedly

on 7.5.1992 and her statement recorded by the Medical Officer of the said Hospital was of 8.5.1992 it is the case of the prosecution that she died in her village 42 days later on 11.6.1992. Her death was unrelated to the alleged miscarriage attributed to the petitioners.

In Crime No. 651/2007 that the petitioners had filed in the Hon'ble High Court of Karnataka at Bangalore, they had assailed the conviction and sentence dated 30.3.2007 ordered against them by the learned Sessions Judge in S.C. No.16/1996.

Imposing a condition that 50% of the fine ordered by the Sessions Court had to be deposited by the petitioners which condition the petitioners did promptly comply, the conviction and sentence ordered against them had been stayed during the pendency of the appeal which has partly been allowed by the judgment dated 19.11.2012, whereby the conviction ordered by the Sessions Court having been affirmed for the offence punishable under Section 314 of the Indian Penal Code. The petitioners have been ordered to undergo simple imprisonment for two months and to pay a fine of Rs.50,000/- each with a direction that Rs.90,000/- from out of the fine amount be paid to the son of the deceased Jayamma and that the remaining amount to be credited to the State Funds.

Immediately after the order of conviction that had been passed against the petitioners, and even in the wake of the suspension thereof ordered in Criminal Appeal No.548/2003, an order of dismissal from service had been passed against them hurriedly and precipitatingly as also contumaciously. The petitioners having questioned the same before the Hon'ble Karnataka Administrative Tribunal, Bangalore, the same stood setaside; and consequently having been reinstated into service they have been serving in the respective capacity mentioned above at the respective hospitals.

The petitioners who, as already stated are civil servants of the State aged respectively 56 and 53 would be totally ruined and shattered in many ways including their Right to Livelihood being deprived on the basis of the conviction ordered against them and consequently their appointing authority directing their dismissal from service, unless the said conviction is stayed in the present petition and ultimately set aside.

The petitioners are aggrieved by that portion of the impugned judgment dated 19.11.2012 of the Hon'ble High Court of Karnataka, Bangalore, whereby the conviction has been affirmed and punishment has been imposed though by toning down the one that had been ordered by the Sessions Court. Hence, assailing that part of the impugned judgment this Special Leave Petition is presented with a fervent prayer

that the conviction and sentence ordered against the petitioners to be set aside by this Hon'ble Court.

LIST OF DATES:

29.4.1992:	The A certain Jayamma w/o. Srinivasachari is stated to have undergone abortion/Medical Termination of Pregnancy.
30.4.1992:	The said Jayamma is stated to have gone back to her village in Mulbagal Taluk of Kolar District in Karnataka State.
2.5.1992	She is stated to have complained of heaviness in her abdomen.
3.5.1992:	The petitioners are alleged to have given life threat to Jayamma.
7.5.1992:	She statedly got admitted to the SNR Hospital, Kolar.
8.5.1992:	A certain K. Venkatesh a head constable of Mulbagal Town Police Station, is stated to have recorded the statement of the said Jayamma.

8.5.1992	Treating the said statement as Information or dying declaration, a F.I.R. was lodged before the JMFC, Mulbagal Town on 12.5.1992. **ANNEXURE-P1** filed herewith is a F.I.R. alleging against the petitioners offences punishable under Sections 312 and 506 of the Indian Penal Code.
23.5.1992:	Dr. Rathnamma a lady Medical Officer of the SNR Hospital, Kolar, is stated to have recorded the statement of Jayamma. **ANNEXURE-P2** filed is a copy of the same.
11.6.1992:	Jayamma breathe her last at 2.00 p.m. on the same day.
13.6.1992:	Inquest on the dead body of Jayamma was statedly conducted between 12.00 noon and 1.00 p.m. and that Dr. Sujatha who was cited as PW3 (CW13) is stated to have opined that Jayamma died on account of septic abortion.
7.11.2000:	A certain Lakshminarayana who was a witness to the mahajar drawn at the inquest was examined as PW1 in case No.16/1996. **ANNEXURE-P3** filed is a copy of his deposition.

18.1.2001: Dr. P. Rathnamma a private doctor who was formerly a Government Doctor was examined and Dr. Sujatha and Dr. Venkatareddy of SNR Hospital, Kolar was also examined respectively as PW2, PW3 and PW4 copies of the deposition are marked as **ANNEXURE-P4, P5 and P6.**

2.8.2001: Krishnachari stated to be the brother of the deceased was examined as PW5. **ANNEXURE-P7** is a copy of the same.

24.8.2001: Venkatachari s/o. Krishnappa, retired PSI, was examined as PW6.

13.11.2001: A certain S.N. Vijaya Kumar, Orthopedic Surgeon was examined as PW7.

13.11.2001: A certain Thippakka, d/o. Sonnappa whom Jayamma had statedly named on 8.5.1992 as having accompanied her to the Government Hospital.

28.1.2002: A certain Krishnamurthy was also treated hostile was examined but was not cross-examined by the prosecution.

16.3.2002: Dr. Chandrakala was treated as a additional charge sheet witness was examined as PW11.

3.3.2003: The petitioners had been ordered to be convicted and sentenced for offences punishable under Sections 314 and 304 II of the Indian Penal Code.

11.7.2005: The Criminal Appeal No. 548/2003 against the said conviction of the sentence was allowed by the Hon'ble High Court, Bangalore which remanded the proceedings to the Sessions Court for a denovo trial.

1.9.2005: The petitioners appeared before the said court.

6.1.2006: The charges under Section 304 and 314 read with Section 34 of the Indian Penal Code were framed against the petitioners.

19.4.2006: In Cr.Revision Petition No. 253/2006 the Hon'ble High Court of Karnataka, set aside the charges so framed on 6.1.2006 and opined that the allegations leveled would fall only within the purview of Section 314 of the Indian Penal Code. Thereupon charges were

framed for offences under Section 314 read with Section 34 of the Indian Penal Code.

30.3.2007: The petitioners were convicted for the offences punishable under Section 314 of the Indian Penal Code read with Section 34 thereof, imposing on them punishment of simple imprisonment for one year and payment of Rs.25,000/- each as fine.

10.4.2007: The petitioners appealed from the said conviction and sentence in Criminal Appeal No.651/2007 in which a conditional order of suspension of the sentence and conviction had been passed.

19.11.2012: By the impugned judgment the Hon'ble High Court has partly allowed the appeal, affirmed conviction and modified the sentence directing that the petitioners shall undergo simple imprisonment for one year and shall pay a fine of Rs.50,000/- each.

…../1/2013: Aggrieved thereby this Special Leave Petition is preferred.

IN THE SUPREME COURT OF INDIA AT NEW DELHI

(Order XVI Rule 4(1)(a)
Criminal Appellate Jurisdiction)

Special Leave Petition

(Under Article 137 of the Constitution of India)

With prayer for interim relief

Special Leave Petition (Criminal) No. /2013

In the matter of :-

1. Saraswathamma,
   Aged
   w/o. Laxmaiah,
   working as A.N.M.,
   P.H.C. Kyasamballi,
   Bangarpet Taluk,
   Kolar District.

2. Sakku Bai,
   Aged
   w/o. N. Kumar,
   Staff Nurse,
   General Hospital,
   Mulbagal,
   Kolar District — Petitioners

And:-

The Mulbagal Police Station,
Represented by S.P.P.,
High Court of Karnataka,
Bangalore. — Respondent

MEMORANDUM OF PETITION FOR SPECIAL LEAVE UNDER ARTICLE 137 OF THE CONSTITUTION OF INDIA FROM THE JUDGEMENT DATED 19.11.2012 PASSED BY THE HON'BLE HIGH COURT OF KARNATAKA, BANGALORE IN CRIMINAL APPEAL NO. 651/2007

To,

The Hon'ble Chief Justice of India,
and his Companion Justices of the
Hon'ble Supreme Court of India,
New Delhi.

The humble petition of the petitioners above named

1. MOST RESPECTFULLY SHOWETH AS FOLLOWS:-

That this Special leave Petition is directed against the judgment dated 19.11.2012, passed by the Hon'ble High Court of Karnataka, Bangalore, in Criminal Appeal No. 651/2007 on its file.

2. QUESTIONS OF LAW :-

(i) Whether, the impugned judgment affirms the conviction ordered by the Sessions Court is tenable and justified in the absence of any incriminating evidence of probative value for supporting the said conviction?

(ii) Whether or not the case on hand would fall within the exception contained in Section 3 of the Medical Termination of Pregnancy Act, 1971, even assuming that a miscarriage had taken place?

(iii) In view of the provisions of Indian Penal Code, relating to miscarriage having become sub-serviette to the provisions of the Medical Termination of Pregnancy Act, 1971 as has been ruled by this Hon'ble Court in the case of Dr. Jacob George Vs. the State of Kerala reported in 1994 (3) SCC page 430, is not the case on hand covered by the non-obstente clause contained in Section 3 of the said enactment.

(iv) Whether, the statement dated 8.5.1992 attributed to the deceased Jayamma could be construed as her dying declaration when the alleged medical termination of pregnancy was statedly carried on 29.4.1992 and Jayamma died 42 days later on 11.6.1992?

(v) Whether, the death of Jayamma which is an unrelated event could be the basis for prosecuting the petitioners and convicting them for the offences punishable under Section 314 of the IPC, in the peculiar facts and circumstances of the case?

(vi) Whether there is clinching and acceptable evidence of probative value, supporting the findings of the courts below particularly when two witnesses including Thipakka who is stated to have turned hostile and Krishnamurthy (PW10) was not even cross-examined despite being treated hostile to the said proceedings.

(vii) Is the finding recorded against the petitioners that Jayamma made a statement on 8.5.1992 and that she was quite conscious and mentally and physically fit to give such a statement which is not even signed by her nor her left thumb mark affixed thereto.

(viii) Whether the findings recorded in paragraph 9 of the impugned judgment that Jayamma was suffering from septicemia due to abortion and that she died of the same particularly when it has found in the very paragraph that there was miscarriage by the petitioners was not known to anybody excepting the victim Jayamma.

(ix) Whether the statement marked as Ex.P6 statedly recorded 40 days after the alleged miscarriage a document of probative value when the same was not even subjected to any corroboration.

(x) Whether the court below is right in holding that there was no necessity for further corroboration of the contents of Ex.P6.

(xi) Whether the findings recorded in paragraph 10 of the impugned judgment as regards the nexus between the alleged acts of the petitioners and the death of Jayamma are sound in law particularly in the facts and circumstances of the case. In the light of the fact that Jayamma died at SNR Hospital, Kolar, when she was being treated thereon 11.6.1992, can the

petitioners be convicted for any offences punishable under Section 314 of the IPC.

(xii) Whether ExP3 could be treated as sacrosanct for the purpose of sustaining the conviction ordered by the Sessions Court.

(xiii) Is the findings recorded in paragraph 12 of the impugned judgment seeking to distinguish the ruling of this Hon'ble Court in the case of Govindaraju @ Govinda Vs. the State, represented by Srirampuram Police Station and another reported in 2012 (4) SCC page 722 sustainable in the facts and circumstances of the case.

(xiv) Having found in paragraph 13 of the impugned judgment that the evidence of Krishnachari, PW5 who was the brother of the deceased Jayamma contained no material to support the case of the Prosecution can the conviction and sentence which are based on the spot witness be sustained?

(xv) In the totality of the circumstances of the case, even assuming that there is an justification for holding the petitioners guilty of the offences punishable under Section 314 of the IPC would not the circumstances of the case justify for holding the petitioners guilty of the offences punishable under Section 314 of the Indian Penal Code would not the circumstances of the case justify their being let on probation particularly in view of the clear findings recorded by the courts

below that there was neither animosity nor enemity between the petitioners and the deceased and the latter was not even known to the former.

3. DECLARATION IN TERMS OF RULE 4(2) :-

The petitioners state that no other petition seeking leave to appeal has been filed by him previously, against the judgment questioned in this Special Leave Petition.

4. DECLARATION IN TERMS OF RULE 6 :-

The Annexures P1 to P7 produced with the Special Leave Petition are all true copies of the documents which formed part of the records of the case in the High Court from the judgment of which court the present Special Leave Petition has arisen.

5. GROUNDS :-

Leave to appeal is sought by the petitioners, on the following grounds.

I. Repeat the same the questions of law.

6. GROUNDS FOR INTERIM RELIEF :-

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7. MAIN PRAYER :-

It is, therefore, most respectfully prayed that this Hon'ble Court graciously be pleased to :-

a) GRANT Special Leave to appeal from the final judgment/ORDER dated 19.11.2012 in Criminal Appeal No. 651/2007 of the Hon'ble High Court of Karnataka, Bangalore;

and

b) PASS such other or further orders as this Hon'ble Court may deem just and proper in the facts and circumstances of the case, including the award of the costs of the proceedings althrough, and in the interest of justice and equity.

New Delhi
Date:

Advocate for the Petitioners

IN THE SUPREME COURT OF INDIA

CIVIL APPELLATE JURISDICTION

SPECIAL LEAVE PETITION (CRIMINAL) Nos. 2872 /2013

IN THE MATTER OF:

Smt. Saraswathamma Petitioner

Versus

The State of Karnataka and others Respondents

AFFIDAVIT

I, Saraswathamma, aged 60 years, w/o. Sri. Laxmaiah, Bangarpet Taluk, Kolar District, Karnataka State, do hereby solemnly affirm and state on oath as follows:-

1. I am the 1st petitioner in the above mentioned Special Leave Petition and as such I am fully conversant to the facts of the case.

2. The contents of the application accompanying this affidavit have been read by me carefully and I have understood the same, and I state that the facts stated herein are true to the best of knowledge and belief.

3. The Annexures filed with the said application are true copies of their respective originals.

DEPONENT

Bangarpet
Date: 24.8.2016

VERIFICATION

Solemnly affirmed and signed before me on this day of 24th August 2016, that the contents of this affidavit having been read over by me and admitted to be true and correct to the best of my knowledge and beliefs.

DEPONENT

Verified at Bangarpet on this day of 24th August 2016